

55	<i>Neach v. Pacheco</i>	Callahan & Blaine, PC's motions to be relieved as counsel for Defendants Rodric Pacheco and Pacheco & Neach, PC are granted. Upon signing the order, counsel shall serve said order on all parties, including Defendants. Callahan & Blaine, PC will be relieved as counsel of record for Defendants effective upon the filing of the proof of service of the signed order upon the clients and other parties. Counsel shall give notice of the ruling.
56	<i>Samayoa vs. Regenesis Energy, Inc.</i>	Cross-Defendants Rockingham Insurance Company's and Certus Claim Administration's unopposed demurrer to Cross-Complainant Danny Garcia Concrete Construction, Inc.'s Cross-Complaint is SUSTAINED with 15 days leave to amend. Cross-Defendants' unopposed request for judicial notice is granted. Service was timely and good. Cross-Complainant failed to file a timely opposition or file a timely amended cross-complaint. Failure to oppose the demurrer may be construed as having abandoned the claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue."].) In addition, the demurrer has merit. Cross-Complainant's claims against Rockingham and Certus are based on the insurance policy that is